

03/09/2025

Mayur Sharma
63146104
2938, First Floor, Near Amity Global,
Sector-46, Gurugram, Haryana - 122022

Dear **Mayur**,

Employment Agreement

We are pleased to appoint you ("**Employee or you**") as '**Lead Analyst**' (**Dentsu Career Framework Level 35**) with **Dentsu Global Services Private Limited** (the "**Company**").

This letter ("**Cover Letter**") sets out the key terms of your employment. Your full terms of employment are contained in this Cover Letter and the enclosed Standard Terms of Employment, along with its Annexures (hereinafter collectively referred to as "**Agreement**"). This Agreement supersedes all prior employment terms, including any formal agreement(s) and any e-mail or verbal communications, if any, prior to the date of this Agreement.

Defined terms carry the meaning given to them in the 'Standard Terms of Employment'.

Condition Precedent to Employment	The Employee's employment with the Company is subject to: 1. the Company being able to obtain references to the satisfaction of the Company which may include details of previous remuneration 2. background checks satisfactory to the Company (which may be conducted before commencing Employee's employment or at the start of Employee's employment and from time to time during the course of Employee's employment including without limitation verification of Employee's prior employment, educational and professional qualifications. The Employee agrees to cooperate with, provide all reasonable information for, and not hinder the performance and accuracy of such checks and the results thereof. Upon becoming aware of the same, Employee shall immediately notify the Company of any other information and/or circumstance which may detrimentally affect the level of probity maintained and/or expected to be maintained by the Employee. In the event that Employee's background check report is received as 'Red' or 'Not Cleared' or is otherwise not to the satisfaction of the Company, the Company reserves the right to terminate the employment and this Agreement with immediate effect, without any further notice, after giving the Employee an opportunity to be heard.
Commencement/ Date	01/09/2025 ("Commencement Date")

Probationary Period	a. Initially, the Employee's employment will be for a probationary period of Six (6) months / 180 days from the Commencement Date ("Probation Period") in dentsu group companies b. Upon completion of Probation Period, the Employee's employment with the Company will be deemed confirmed unless the Probation Period is extended by the Company as stated hereinafter: c. The Probation Period may get extended at the discretion of the Company. In the event of extension of Probation Period, the employee will get a written notification of extension of probation. ("Extended Probation Period"). (c) During the Probation Period/ Extended Probation Period, the Company shall evaluate the Employee's performance, and if the same is not satisfactory, the Company shall have the discretion to terminate the services of the Employee with thirty (30) days of notice or payment in lieu of notice. The Company shall also reserve the right to terminate the services of the Employee during the Probation Period / Extended Probation Period without assigning any reason for such termination. In such instances, the decision of the Company shall be final and binding on the Employee. (d) During the Probation Period and the Extended Probation Period, all provisions under the Agreement shall be applicable to the Employee. (e) The Probation period is not applicable in case of (1) Conversion of employment (contingent worker to full- time) and (2) if you have completed probation period in any legal entity and get transferred to any different legal entity within Dentsu group.
Job Title	Lead Analyst
Place of Work	DGS India - Remote
Compensation and Benefits	The Employee shall be eligible to receive annual basic salary, house rent allowance, provident fund and certain allowances/ payments payable on monthly basis, as per the details provided in the "Compensation Package Sheet" which is attached herewith as Annexure – I
Notice Period or Payment In Lieu of Notice for Termination of Contract	Until the end of the probationary period: Thirty (30) days' notice or by paying thirty (30) days' gross salary in lieu of the notice period (or part thereof). Following completion of the probationary period: No less than Ninety (90) days' notice in writing or by paying ninety (90) days' gross salary in lieu of notice (or part thereof), as mutually agreed.

	[Transfer Hires or conversion under the same role/contingent worker to full-time employment] No less than Ninety (90) days' notice in writing or by paying Ninety 90 days' gross salary in lieu of notice (or part thereof) as mutually agreed.
Non-Compete Period	During the term of the Agreement and twelve (12) months, commencing on the date on which the Employee's employment terminates.
Non-Solicit Period	During the term of the Agreement and twelve (12) months, commencing on the date on which the Employee's employment terminates.

Please indicate your understanding and acceptance of this Agreement by:

1. signing and dating on: (i) the enclosed duplicate of this Agreement; and (ii) the Personal Data Protection Statement found in the duplicate letter's annexure; and
2. returning that signed duplicate letter (including the Personal Data Protection Statement) to us.

We are pleased to have you as a member of the growing dentsu family.

For **Dentsu Global Services Private Limited**



Vaishali Mehta
Senior Vice President - Human Resources
Authorized Signatory

Date: 03/09/2025



Mayur Sharma
PAN No: CWZPS4804F
The Employee

Date: 03/09/2025

Standard Terms of Employment

1. Term of Employment

- (a) Subject to the Employee satisfying the condition precedent to employment as set out in the Cover Letter, the Employee's employment under this Agreement shall commence on the Commencement Date as set out in the Cover Letter, and shall continue until terminated in accordance with the provisions of Section 12. If the Employee requires a work pass to work in India, the Employee shall not perform any employment duties in India pending approval of the work pass.
- (b) The Employee's employment shall in any event automatically terminate upon the Employee reaching the statutory retirement age of sixty (60) years. An extension may, however, be given at the discretion of the of the Company.

2. Powers and Duties

- (a) The Employee shall serve the Company in the position and report to the person as set out in the Cover Letter, or such other person(s) as the Company may direct from time to time.
- (b) The Employee shall devote the Employee's best efforts and attention to and shall perform the duties and responsibilities of the Employee's position with efficiency, diligence, care and conscientiousness for the Company. The Employee shall at all times loyally, faithfully and industriously promote the business and interests of the Company and perform such related duties and responsibilities as may from time to time be reasonably prescribed by the Company.
- (c) The Employee shall work with other employees of the Company and other key members of the team in a respectful, competent and professional manner.
- (d) The Employee shall observe and comply with all the provisions set out in any written policy, practice or procedure circulated by the Company or Dentsu Aegis Network (dentsu) from time to time, including any conflict of interest policies, any anti-bribery policies and the dentsu's Group's Code of Conduct (collectively, "**Policies**") although, to the extent the Policies impose obligations on the Company or any holding, subsidiary, associate or group company ("Related Corporation") of the Company or confer rights on the Employee, these do not form part of the Employee's Agreement and may be amended by the Company from time to time. In the event of any inconsistency between the terms of this Agreement and any Policies, the terms of this Agreement shall prevail.
- (e) The Employee shall protect the property of the Company from theft, loss, damage or neglect and without delay give notice immediately to the Company or its responsible representatives of any theft, loss, damage or neglect of such property which may come to the Employee's knowledge.
- (f) The Employee will be responsible for safe keeping and return in good condition/order and whenever demanded by the Company, all Company owned/ leased/ hired property, which is/will be in the Employee's use, custody or charge for the business purpose of the Company during the course of Employee's employment with the Company and shall return all such property to the Company prior to relinquishment of Employee's charge, failing which the cost of the same will be recovered from the Employee by the Company. The Employee always abide by the instructions given to the Employee with regard to the handling, commercial and insurance related matters pertaining to the said property.

- (g) The Employee agrees that he will not at any time after the termination of his employment, either personally or by Employee's agent directly or indirectly represent the Employee as being in anyway connected with or interested in the business of the Company.
- (h) The Employee's employment will be governed by the statutory laws enacted by the government of local authorities as may be applicable from time to time. The Employee shall comply with all applicable laws, regulations, and governmental orders of India, now or hereinafter in effect, relating to the Employee's employment by the Company including but not limited to the provisions of the Prevention of Corruption Act, 1988 of India, the Foreign Corrupt Practices Act, 1977 of the United States of America and the Bribery Act 2010 of the United Kingdom.
- (i) The Company reserves the right to modify, at any time in its sole discretion, the Employee's position provided that the terms of remuneration shall not be prejudiced or reduced and shall continue in accordance with the terms specified in Section 4.
- (j) The Employee will keep the Company informed of any change in Employee's residential address, civil or marital status and other such matters.

3. Country of employment

- (a) The Employee's place of work shall be that as set out in the Cover Letter, or at such other place as required by the needs of the business.
- (b) The Company may, in its business interests, or in exigencies, relocate/ depute the Employee to its office/s or to any of its Related Corporation offices in India or abroad, or at client locations. In such cases of relocation/ deputation, the Employee will be governed by the Company's transfer policy and guidelines.
- (c) The Employee shall undertake local and overseas travel as may be required for the proper performance of the Employee's duties, responsibilities, and obligations towards the Company.

4. Remuneration

- (a) Fixed Salary

In consideration of the services performed by the Employee, the Company shall pay to the Employee a gross salary per annum as set out in the Cover Letter and more specifically detailed in 'Annexure 'I' attached hereto. The Company may, in its sole discretion, review such salary annually. The Employee will be paid fixed Salary on or around the last day of each calendar month. Where the Employee is not in employment on or prior to the Company's monthly payroll processing cut-off date, the Employee will be paid in the following monthly payroll. The Employee shall be responsible for paying all taxes which may be levied or assessed on any sums paid and/or other benefits provided to the Employee by the Company. Any payment from the Company to the Employee shall be subject to any and all withholding and other taxes leviable and the Company shall in such case be entitled to deduct or retain the amount of such tax from the sum payable to the Employee.

- (b) Other benefits

The Employee may also be eligible to other benefits in accordance with the Cover Letter and 'Annexure I' to this Agreement.

5. Hours of work

The Employee's usual working hours and rest days will be in accordance with applicable regulations, business needs and Company's policies. The Employee shall work such hours as may reasonably be required for the proper performance of the Employee's duties, responsibilities and obligations and shall devote the whole of the Employee's time, attention and abilities during working hours to carrying out the Employee's duties in a proper, loyal and efficient manner.

6. Holidays / Annual Leave / Contingency/Sick Leave

(a) Statutory Holiday / Annual Leave

In addition to any local statutory public holidays, the Employee shall be entitled to twenty (20) annual leave per calendar year [pro-rated for part time employees and where the Employee's service for any particular calendar year is less than twelve (12) months] in accordance with leave policies of the Company and applicable law and regulations, or as otherwise notified by the Company from time to time.

(b) Other Leave Entitlements

The Employee will be entitled to paid contingency (casual & sick leave), maternity, paternity and bereavement leave, and other leave entitlements in accordance with the Company's prevailing policies and applicable law.

In the event of any conflicts or inconsistencies between this Section 6 and the HR policies governing leave in India, the HR policies will supersede.

7. Expenses

The Company shall reimburse the Employee for all reasonable and necessary expenses properly, wholly and exclusively incurred by the Employee in the performance of the Employee's duties. Any such expenses must be pre-approved in writing by the Company, and, for reimbursement, the Employee must produce official receipts or other evidence thereof within three (3) months of the expense being incurred.

8. Group Benefits

(a) The Employee may be eligible to participate in group benefit plans offered to employees in India Eligibility to participate in any group benefits plans will be subject to:

(i) acceptance by the insurer of the Employee under the relevant policy;

(ii) the terms, conditions and exclusions of the relevant policy; and

(iii) the Company's right at any time to seek and obtain insurance on different terms and levels of benefits to those applying at the commencement of the Employee's employment.

(b) The group benefits are offered by the Company on a discretionary basis and may be withdrawn or varied by the Company (or any Related Corporation of the Company) at any time. Details of each benefit plan will be provided under separate cover and do not have contractual force.

9. Intellectual Property

- (a) The parties foresee that the Employee may make inventions or create other industrial or intellectual property in the course of the Employee's duties hereunder and agree that in this respect the Employee has a special responsibility to further the interests of the Company.
- (b) The Employee acknowledges that all existing and future Intellectual Property rights (including but not limited to patents, copyrights, rights in circuit layouts, registered designs, trademarks and the right to have Confidential Information kept confidential and any application or right to apply for registration of the rights) to and in any discoveries, inventions, designs, models, drawings, plans, software, reports, proposals, improvements, internet development, software coding and creation of web-pages and any other materials created or generated by the Employee (whether alone or with the Company, its other employees, agents or contractors) in the course of the performance of the Employee's duties (the "Inventions") shall belong to the Company. The Employee hereby irrevocably, absolutely and perpetually assigns and agrees to assign to the Company, its successors, assigns or nominees, all of the Employee's rights to, and title and interests in, any and all Inventions made, conceived or suggested either solely or jointly with others, in the course of the Employee's employment with the use of the Company's time, materials or facilities or which is in any way related to the existing or contemplated scope of the operations or business of the Company or a Related Corporation of the Company. Any Inventions relating to any subject matter with which the Company was concerned during the Employee's employment and made, conceived or suggested within one (1) year following termination of the Employee's employment shall be presumed to have been so made, conceived or suggested in the course of the Employee's employment with the use of the Company's time, material or facilities.
- (c) The parties intend and expressly agree that any copyrightable works of authorship generated by the Employee during the Employee's employment, whether pertaining to the operation or business of the Company or resulting from any work done pursuant to the Employee's employment, including without limitation, any and all such materials generated and maintained on any form of electronic media (collectively "Works"), are "works made for hire" and that authorship and ownership of any and all copyrights in any and all such Works shall belong solely to the Company. To the extent that any Works are not deemed to be "works made for hire", the Employee hereby irrevocably transfers, assigns and relinquishes to the Company or its successors, assigns or nominees for no further or additional consideration all present and future ownership, rights, title and interest in such Works and all rights to apply for copyright registration or to prosecute any claim of infringement of such Works and to hold the same absolutely for the duration in which copyright subsists.
- (d) The Employee hereby irrevocably and unconditionally waives and agrees to assign to the Company, its successors, assigns or nominees, any and all moral, intellectual or any other rights of a similar nature under any law in any jurisdiction in and to any and all material howsoever generated by the Employee, whether written or otherwise, solely or jointly with others, in the course of the Employee's employment with the use of the Company's time, materials or facilities or which is any way related to the existing or contemplated scope of the operations or business of the Company or a Related Corporation of the Company. Where such rights may not by law be transferred, the Employee assigns and agrees to assign to the Company the right to commercialise, use and/or receive the economic benefit thereof.
- (e) The Employee shall do all things necessary to irrevocably appoint the Company as the Employee's attorney for the purpose of executing in the name and on behalf of the Employee all such deeds and documents as may be required pursuant to sections 9 (b)-

- (d). Where requested by the Company, the Employee shall promptly execute and assist the Company in executing such deeds and documents and in obtaining such domestic and foreign protection, patent or otherwise, as the Company may desire.
- (f) Upon request by the Company with respect to any such Inventions, Works or moral or other rights as described in Section 9(d) (altogether the "Intellectual Property"), the Employee will promptly disclose, execute and deliver to the Company all appropriate documents necessary to:
- i. impart a full understanding of the said Intellectual Property;
 - ii. applying for, obtaining and maintaining such domestic and foreign protection, patent or otherwise, as the Company may desire for the Intellectual Property; and
 - iii. effect all assignments as requested by the Company at the expense of the Company but without further or additional consideration.
- (g) The Employee acknowledges that there may be future rights with respect to the Intellectual Property to which the Company may otherwise become entitled, but that do not yet exist, such rights being defined as new uses, media, and means and forms of exploitation to exploit current or future technology yet to be developed. The Employee specifically intends the foregoing grant or transfer of rights in this Section to include all such known or unknown uses, media and forms of exploitation.
- (h) The Employee acknowledges and agrees that a violation of Section 9 would cause irreparable harm to the Company and that the Company's remedy at law for any such violation would be inadequate. Accordingly, the Employee agrees that in addition to any relief afforded to the Company by law or under the Agreement and without the necessity of proof of actual damage, the Company may and the Employee will not object to the enforcement of the Agreement by specific remedies, including but not limited to temporary and permanent injunctions, it being the further understanding of the parties hereto that any and all relief accorded to the Company is not to be considered to be alternative and mutually exclusive remedies.
- (i) For the avoidance of doubt, Section 9 shall survive and shall not be affected by the termination, for whatever reason, of the Agreement. The Employee further acknowledges that the Employee's remuneration as provided for under the Agreement includes compensation for the assignment to the Company of all Intellectual Property rights as provided for under Section 9.

10. Confidentiality

- (a) The Employee acknowledges that, in the course of the Employee's employment, the Employee will or may have access to and become informed of confidential and proprietary information of the Company or a Related Corporation of the Company (the "Confidential Information") and the Employee further acknowledges that all such Confidential Information is and will remain at all times the property of the Company.
- (b) Confidential Information shall mean all information of any nature and in any form, whether written, oral or electronic, that is disclosed to or known by the Employee as a consequence of or through employment with the Company, whether such information is developed by the Company or is submitted to the Company in confidence by third parties and shall include, without limitation:

- (i) any information concerning the business accounts, finance plans or strategies of the Company, a Related Corporation of the Company or of any client/customer of the Company or a Related Corporation of the Company;
- (ii) any confidential report or research commissioned by or on behalf of the Company, a Related Corporation of the Company or any of their respective clients in connection with the business or affairs of the Company, a Related Corporation of the Company or any of their respective clients;
- (iii) any trade secrets of the Company or a Related Corporation of the Company, including know-how and confidential transactions; and
- (iv) any other information deemed confidential by the Company or a Related Corporation of the Company or which given its nature or the circumstances surrounding its disclosure should be considered as much which has or may have come to the knowledge of the Employee in the course of the Employee's employment.

Confidential Information shall not include any information that was part of the public domain at the time of disclosure to the Employee or becomes part of the public domain, otherwise than as a result of a direct or indirect disclosure by the Employee in breach of the Agreement.

- (c) The Employee shall, in the course of the Employee's employment, use Confidential Information only for the purposes of carrying out the Employee's duties in the Company and not for any other purposes. During the continuance of the Agreement and after the termination of the Employee's employment, the Employee covenants and agrees to hold in strictest confidence and to exercise the utmost diligence to maintain the confidentiality of any Confidential Information or any other information as to the affairs, dealings and concerns of the Company or a Related Corporation of the Company. The Employee shall restrict disclosure of such Confidential Information to those of the Company's employees or agents with a need to know such information and who have previously agreed (e.g. as a condition to their employment or agency) to be bound by terms respecting the protection of Confidential Information which are substantially similar to those of this Agreement, and which would extend to the Company's Confidential Information. The Employee shall use the Employee's best efforts to prevent the publication or disclosure of the same to any third party and shall not, during the continuance of the Agreement and after the termination of the Employee's employment, without the prior written consent of the Company:
 - (i) use for the benefit or purposes of the Employee or any other third party, any Confidential Information; or
 - (ii) directly or indirectly reveal, furnish, divulge or otherwise make known or available to any third party, any Confidential Information.

The restrictions in Section will not apply to Confidential Information to the extent it (a) was in the public domain at the time of disclosure; (b) became publicly available after disclosure without breach of this Agreement; (c) was lawfully received by Employee from a third party without such restrictions; (d) was known to Employee without such restrictions prior to its receipt from the Company (e) was independently developed by Employee without breach of this Agreement; (f) was generally made available to third parties by the Company without such restriction; or (g) is required to be disclosed by Employee pursuant to judicial order or other compulsion of law, provided that Employee will provide to the Company prompt notice of such order and comply with any protective order imposed on such disclosure

- (d) Upon intimation from the Company all copies of the Company's Confidential Information in the possession of Employee will be returned to the Company or promptly destroyed to the satisfaction of the Company.
- (e) The Employee acknowledges and agrees that the Employee's obligations under Section 10 are reasonable and necessary for the protection of the Company's business interests and are in addition to any other obligations of confidentiality that the Employee may have to the Company or a Related Corporation of the Company under other legal or equitable principles. The Employee further acknowledges that irreparable injury will result to the Company if the Employee breaches any of the terms of Section 10, and that in the event of an actual or threatened breach of any such obligation, damages will not be an adequate remedy for the Company. Accordingly, the Employee agrees that in the event of any actual or threatened breach by the Employee of any terms under Section 10, the Company will be entitled to immediate injunctive and other equitable relief, without bond and without the necessity of demonstrating damage. Nothing in the provision prohibits the Company from pursuing any other remedies for such breach or threatened breach, including the recovery of damages.
- (f) Nothing in this Agreement shall prevent the Employee from complying with a requirement by law, regulation or court order to disclose any of the Confidential Information. However, subject to applicable law, in such event, the Employee shall notify the Company promptly so that the Company may seek a protective order or other appropriate remedy. Regardless of whether such protective order or other remedy is obtained, the Employee shall furnish only that portion of the Confidential Information which is required and exercise all reasonable efforts to obtain reliable assurance that confidential treatment will be accorded to the Confidential Information so disclosed.
- (g) Any misconduct or breach of any of the terms and conditions of this Agreement shall make the Employee liable to immediate removal from the services of the Company apart from any action which the Company may take against the Employee as deemed appropriate. In such events it would not be necessary for the Company to give the Employee any notice, or payment in lieu thereof, whatsoever. Further, Employee shall be liable to indemnify and hold the Company harmless against any losses, costs, claims, damages, or expenses incurred by the Company either as a result of the unauthorized disclosure by Employee of any of the Information or because of the breach of any of the terms of this Agreement by Employee.

11. Restrictions

- (a) For the duration of the Employee's employment, the Employee shall not, without the prior written consent of the Company, be engaged in, employed by or render services to any other person, business or enterprise other than the Company, whether for remuneration or otherwise.
- (b) During the Non-Compete Period (as set out in the Cover Letter), the Employee shall not in the Restricted Area, without the Company's prior written consent:
 - i. directly or indirectly, individually or on behalf of any other person or entity, engage in any business activity (as an employee, officer, consultant, adviser, partner, principal or agent or otherwise) that is or is about to be in competition with the Restricted Business;
 - ii. acquire or maintain a direct or indirect interest in any business or enterprise (as owner, stockholder, partner, lender or otherwise) that is or is about to be in competition with the Restricted Business, save for any holding of not more than 5% of the securities in any publicly traded corporation; or;

- iii. assume any employment (as an employee) or engagement (as an officer, consultant, adviser, partner, principal or agent or otherwise) in any capacity substantially the same as the role(s) performed by the Employee for the Company, with any company that is or is about to be in competition with the Restricted Business, save for any holding of not more than 5% of the securities in any publicly-traded corporation.
- (c) During the Non-Solicit Period (as set out in the Cover Letter), the Employee shall not within the Restricted Area, without the Company's prior written consent:
 - i. solicit, entice or attempt to solicit or entice, directly or indirectly, on the Employee's own account or for any other person, business or company, including but not limited to employee, retainer, consultant, or client or potential client of the Company or its Related Corporation with whom or of which the Employee has dealt or of whom or of which the Employee has knowledge by virtue of the Employee's duties in the twelve (12) months prior to the date on which the employment terminates;
 - ii. solicit, entice or induce, or attempt to solicit, entice or induce, directly or indirectly, any person employed or engaged by the Company or a Related Corporation of the Company, in a role which involves management responsibility or in a client or supplier facing role, or who by reason of such employment or engagement is likely to have knowledge of any trade secrets or Confidential Information of the Company or a Related Corporation of the Company, and was a person with whom the Employee dealt during the twelve (12) months prior to the date on which the employment terminates in the course of the Employee's duties; and
 - iii. cause or permit any person directly or indirectly under the Employee's control to do any of the abovementioned acts or things.
- (d) At any time after the termination of employment, the Employee shall not without the Company's prior written consent:
- (e) induce or seek to induce by any means involving the disclosure or use of Confidential Information any person firm or company with whom the Employee has dealt or of whom the Employee has knowledge by virtue of the Employee's duties in the twelve (12) months prior to the date on which the employment terminates to cease dealing with the Company or to restrict or vary the terms upon which it deals with the Company;
 - (i) hold out or represent, or be held out or represented by any other person, as being in any way connected with or interests in the Company; or
 - (ii) disclose to any person, or make use of any Confidential Information.
- (f) The period of the post-termination restrictions set out in Section 11(b) shall be reduced by any period during which the Company has exercised its right to send the Employee on Garden Leave pursuant to Section 12(d).
- (g) The Employee agrees that the restrictions contained in this Section 11 are reasonable and necessary for the protection of the custom and business activities of the Company. The Employee acknowledges that if any of the undertakings in this Section 11 are breached, the Company and/or the Related Corporation of the Company will suffer irreparable and continuing damage for which damages are insufficient, and the Company and/or the Related Corporation of the Company shall be entitled to injunctive relief and/or decree for specific performance, and such other relief as may be proper (including damages if appropriate), to the extent permitted by law.

- (h) If any court of competent jurisdiction should find that any of the provisions of this Section 11 should be held to be unlawful or unreasonable, then the parties agree that the court should read into these provisions such amendments as the court may find reasonable and lawful rather than striking out these provisions in their entirety.
- (i) "Restricted Area" shall mean India and/or any place the Employee had worked in and/or where the Employee's duties were directly concerned and/or the Employee had material conduct and/or involvement of the Restricted Business during the Employee's employment, thereby developing significant trade connections in such regions.
- (j) "Restricted Business" shall mean:
 - i. the business carried on by the Company or a Related Corporation of the Company at the date on which the employment terminates (or which the Company or a Related Corporation of the Company had planned to carry on with a view to profit within six (6) months of the date on which the employment terminates); and
 - ii. the business division with which the Employee has been concerned or involved to any material extent in the twelve (12) months prior to the date on which the employment terminates, or in relation to which the Employee at the date on which the employment terminates possesses Confidential Information.

12. Termination

- a. Except as stated in Section 3 of the section 'Probationary Period' as set out in the Cover Letter, the Company shall have right to terminate the Agreement without any reason by providing a written notice of **90 days** to the Employee. During such notice period, the Employee is expected to fulfil all of the Employee's duties and responsibilities set forth in this Agreement and use Employee's reasonable efforts to train and support the Employee's replacement, if any..
- b. The Employee shall be entitled to resign from employment for any reason upon providing advance written notice of **90 days** to the Company, except during the Probation Period/Extended Probation Period, where the Employee shall have the right to terminate the Agreement by providing advance written notice of thirty (30) days to the Company. During such notice period, the Employee is expected to fulfil all of the Employee's duties and responsibilities set forth in this Agreement and use the Employee's reasonable efforts to train and support the Employee's replacement, if any.
- c. Notwithstanding anything contained in Section 12(a), the Company may by written notice terminate the Agreement immediately without notice without prejudice to any continuing obligations of the Employee under the Agreement or to any other right or remedy accruing to the Company, in any of the following cases, namely:
 - i. in the case of a wilful or serious breach by the Employee of a term of the Agreement;
 - ii. if the Employee engages in dishonest, fraudulent, serious or persistent misconduct, or breaches any agreement with the Company or a Related Corporation of the Company or fails to observe the Company's disciplinary or other rules, regulations or policies;
 - iii. if the Employee is convicted of a criminal offence or an offence involving moral turpitude which, in the view of the Company, renders the Employee unfit to serve in the Employee's capacity as an officer or employee of the Company;

- iv. if the Employee becomes incapacitated by illness or is otherwise prevented from performing the Employee's duties for a period of six (6) calendar months in any twelve (12) months period, or is found by a court of competent jurisdiction to be of unsound mind or suffering from any mental illness;
 - v. if the Employee becomes or if any steps are taken by any person or entity which may lead to the Employee being declared a bankrupt, having a receiver appointed for the whole or part of the Employee's assets, having a receiving order made against the Employee or making any general composition or agreements to settle with the Employee's creditors;
 - vi. in the case of failure by the Employee to follow any lawful direction of the Company;
 - vii. if a charge sheet has been filed for the commission of a criminal offence which may result in imprisonment of the Employee, and where such charge sheet is not stayed, vacated or quashed within a period of three (3) months from the date of filing, which the board of the Company reasonably determines renders the Employee unfit to serve in the Employee's capacity as an officer or employee of the Company;
 - viii. The Employee's appointment is substantially based on the information provided by the Employee to the Company. If it is found at any stage that the information provided by the Employee is incorrect or that some information is suppressed, such act shall make the Employee liable to immediate removal from the services of the Company. In such events, it would not be necessary for the Company to provide to the Employee any notice, or payment in lieu thereof, whatsoever.
 - ix. in the case of a breach by the Employee of any provisions of this Agreement including Section 11 (Restrictions) or Section 10(a) (Confidentiality) or 'Dentsu International Global Policies';
 - x. if the Employee is guilty of any other act which would entitle the Company to terminate the Employee's employment without any notice or payment in lieu under applicable legislation or at common law; and
 - xi. failure of the Employee to perform his duties as per the current role under this Agreement for more than 10 (ten) consecutive working days without prior notice to the Company.
- (d) Following the delivery of notice under Section 12 (a) or (b) by either party or, if the Company is undertaking an investigation at any time during the employment, the Company may by written notice require the Employee: not to perform any services (or to perform only specified services) for the Company or any Related Corporation of the Company; not to attend the Employee's place of work or any other premises of the Company; and not, without the prior written consent of the Company, contact or deal with (or attempt to contact or deal with) any officer, employee, consultant, client, customer, supplier, agent, distributor, shareholder, advisor or any other business contact of the Company or any Related Corporation of the Company, until the termination of the employment or a specified date ("Garden Leave").
- (e) In the event of termination of the Employee's employment, the Employee shall immediately resign from any offices held as a Director of the Company and any offices held by the Employee in any Related Corporation of the Company and return to the Company all documents and properties which are in the Employee's possession, custody or control, whether electronically stored or otherwise, pertaining to the

business and affairs of the Company or which may contain or be derived from any Confidential Information and Intellectual Property.

- (f) The Employee agrees that, following the termination of the Employee's employment with the Company for any reason, the Employee will upon reasonable notice provide such information and assistance to the Company as may reasonably be requested by the Company in connection with any litigation to which the Company is or may become a party to, provided that the Company will reimburse the Employee for any expenses reasonably incurred by the Employee in providing such information or assistance where such expenses are approved in advance by the Company.
- (g) To the extent permitted by law, at any time during the employment of the Employee with the Company, or in the event of termination of employment because of the provisions of any of the aforementioned sections, if the Company is required to recover any payment from the Employee such as any outstanding loans, advances, the cost of repairing any damage or loss of Company's property, excess annual leave pay or any other monies owed by the Employee to the Company, the Company reserves the right to adjust or set off any such payments due to the Employee including but not limited to any payments arising out of any statutory obligations.
- (h) In the event of termination or cessation of the Employee's employment, (i) the Employee shall immediately return to the Company, all physical documents and properties which are in the Employee's possession, custody or control, pertaining to the business and affairs of the Company or which may contain or be derived from any Confidential Information and Intellectual Property; and (ii) the Company shall thereafter take all necessary actions to take on record such termination/cessation and make all requisite filings with the concerned regulatory authorities, if required. All documents or information stored electronically in Employee's possession shall be destroyed by the Employee as per the Company's satisfaction.

13. Duty to Return Company Property

- (a) Upon the termination of employment with the Company for any reason, the Employee shall immediately return any and all the Company's and/or its Related Corporation's property provided to, acquired by, or otherwise in the possession of the Employee, including but not limited to desktop computers, laptops, other computer equipment (including software), internal memoranda, training materials, books, ID cards, information, drawings, designs, photographs, blueprints, charts, graphs, notebooks, customer lists, computer disks, tapes or printouts, sound recordings and other printed, typewritten or handwritten documents, sample products, prototypes, and models, emails regarding any ongoing or upcoming projects, details of customers, suppliers, etc., Employee's contribution, (including any Intellectual Property rights thereto and originals and all copies of any and all material containing, representing, evidencing, recording, or constituting all or part of the Employee's contribution), any tangible expression of any Confidential Information, and any other information or item in possession of the Employee, including all copies, duplications, replications, and derivatives of such items ("**Company Property**").
- (b) Any property of the Company or any of its Related Corporation (including but not limited to the property referred to in Section 13(a) above in Employee's possession or control and any original or copy documents obtained by Employee in the course of Employee's employment shall be immediately returned to the Company at any time on request, and in any event, on the termination of Employee's employment with the Company, all such property (i) to the extent physical in nature, shall be returned by Employee immediately or as otherwise directed by the Company; and (ii) to the extent digital or electronic, shall be transferred to

the Company and/or deleted by the Employee, as may be directed by the Company, and Employee hereby authorise for appropriate deductions to be made from Employee compensation to cover the cost of an equivalent replacement of the property, in event the Employee fails to return/transfer/delete it, as the case may be. If requested to do so by the Company, Employee shall provide proof that he has complied with these obligations.

14. Company Regulations

The Employee shall observe and comply with all of the rules, regulations, directions and policies of the Company (or applicable Related Corporation of the Company) as may from time to time be made or given although, to the extent such documents impose obligations on the Company or any Related Corporation of the Company or confer rights on the Employee, these do not form part of the Employee's Agreement..

15. Representations of the Employee and the Company

(a) The Employee represents to the Company that:

- (i) the Employee is competent and free to enter into this Agreement and has full power and absolute authority to enter into this Agreement;
- (ii) this Agreement when executed and delivered by the Employee will constitute a valid and legally binding obligation of the Employee enforceable in accordance with its terms;
- (iii) the execution, delivery and performance of this Agreement by the Employee will not conflict with, result in a breach of or default under any applicable law, or any order, writ, injunction or decree of any court or governmental or regulatory authority, or any agreement, arrangement or understanding, written or oral, to which the Employee is a party or by which the Employee or any of his assets are bound; and
- (iv) the Employee is not subject to any contractual restriction, obligation, agreement, arrangement, contract, understanding, court order or otherwise, which in any way, directly or indirectly, limits, restricts or prevents, or will limit or will restrict or prevent him from performing all or any of his obligations, responsibilities and duties contained herein.

(b) Each of the representations of the Employee provided in this Agreement is independent of other representations contained herein.

(c) The Company represents and warrants to the Employee that (i) this Agreement has been duly authorized, executed and delivered by it; and (ii) constitutes a valid and legally binding agreement with respect to the subject matter contained herein that is enforceable in accordance with its terms.

16. Warranties

(a) The Employee warrants:

- (i) other than what the Employee has disclosed to the Company in writing, that the Employee is not restricted from performing the Employee's duties for the Company arising from any restrictive covenant or other non-competition obligation owed to anyone, or a restriction imposed on the Employee concerning the use of any information or the intellectual property rights of anyone;
- (ii) not to disclose to the Company or use any inventions, confidential or non-public information or material belonging to any of the Employee's prior employers, clients or

to any other third party, and that the Employee shall not by any act or omission cause or induce the Company to use the same;

- (iii) that the credentials and information provided by the Employee to the Company (or to the Company's agent or any Related Corporation of the Company) touching upon the Employee's qualifications and ability to perform the duties under this Agreement are true and correct;
- (iv) that the Employee has disclosed any engagement, concern or interest in any other business to the Company and has ceased such engagement, concern or interest except where the Company has provided written consent or where the outside interest is limited to the Employee and the Employee's associates holding less than 2% (in aggregate) of the issued shares of any class of any one company listed on any recognised stock exchange, provided that such involvement does not detract from the Employee's performance of their duties and/or does not conflict with or otherwise interfere with the Company or any Related Corporate of the Company; and
- (v) That the Employee has all the necessary licences, permissions, consents, approvals, qualifications and memberships required by the Employee to perform the duties under this Agreement and that the Employee has never been suspended, censured or otherwise subjected to any disciplinary action or other proceeding, litigation or investigation by any state or governmental body or agency or any regulatory authority or self-regulatory organisation.

17. Job Assignments:

During the employment with the Company the Employee may be given any assignment arising out of the Company's business that the management, in its judgment, reasonably feels is suited to the Employee's background, qualifications or experience. The Employee agrees that the Employee will not refuse to carry out any assignment solely on the grounds that it has not been part of Employee's usual duties during his or her employment or for any reason otherwise. Further the Company at its sole discretion reserves right to assign/transfer the Employee's employment to any of the Company's associate, affiliate, or its Related Corporation without providing to the Employee any prior notice thereof or to any such location where Company's office premises are situated, or Company is carrying out or intending to carry out its business operations in such geography.

18. Business Continuity

The Company may from time to time impart or/and sponsor the Employee for training in specialized areas, including but not limited to, training on the use of industry standard software tools and applications, client proprietary software tools and applications, and general management and performance improvement. The Employee may also be required to take important assignments abroad. For such activities the Employee will be required to execute a 'Business Continuity Agreement' to serve the Company for a minimum specified period from the beginning of such special training/ important assignments. The period of such service shall be decided on a case-to-case basis.

19. Cooperation in Enquires/Investigations

In the event of an enquiry or investigation whether conducted internally by the Company or by a third-party expert engaged by the Company, the Employee is required to fully cooperate, including by providing any requested information, documents, or access to Company systems within the Employee's control. This obligation extends to any investigations arising from potential breaches of company policies, suspected misconduct, or any actions that may impact the Company's legal, financial, or reputational standing. The

Employee's cooperation shall include, but is not limited to, participation in interviews, submission of relevant records, and adherence to confidentiality requirements related to the investigation.

20. Changes to the Terms of Employment

The Company reserves the right to make reasonable changes to any of the terms and conditions of the Employee's employment. All the terms and conditions of your employment shall be governed by the Company's policies, procedures, and guidelines, as applicable and as may be amended from time to time.

21. General provisions

- a. The termination of the Agreement howsoever arising shall not affect such of the provisions Section 9 (Intellectual Property), Section 10 (Confidentiality), Section 11 (Restrictions), Section 12 (Termination), Section 13 (Duty to Return Company Property), Section 15 (Representations by the Employee and Company), and Section 22 (b) and any other provisions which expressly or by their nature need to survive termination shall survive termination of this Agreement; and shall be without prejudice to any right of action already accrued to either party in respect of any breach of the Agreement by the other party.
- b. This Agreement shall be governed, interpreted and construed in accordance with the laws of India, and the courts of Mumbai shall have exclusive jurisdiction over any dispute arising out of, or in connection with, or in relation to or under this Agreement, without regards to the principles of conflict of laws.
- c. The Agreement constitutes the entire understanding and agreement between the parties with respect to the matters addressed herein and supersedes any and all prior agreements, negotiations or understandings, oral or written, between the parties hereto with respect to the Employee's employment with the Company or a Related Corporation of the Company.
- d. This Agreement (including any amendments) is confidential and may not be disclosed by the Employee to any other person, other than for the purpose of obtaining professional legal or accounting advice, without the prior approval of the Company.
- e. To the extent permitted by law, at any time during the Employee's employment, or upon its termination (howsoever arising), the Company shall be entitled to deduct from the Employee's remuneration (or from any other payments due to the Employee in respect of the employment or its termination) any monies due from the Employee to the Company including, without limitation, any outstanding loans, advances, overpayment of wages, the cost of repairing any damage or loss to the Employee's property caused by the Employee (and of recovering the same), excess annual leave pay and any other monies owed by the Employee to the Company.
- f. If any provision of the Agreement or the application of any provision hereto to any person or circumstances is held to be invalid, unenforceable or otherwise illegal, the remainder of the Agreement and the application of such provision to any other person or circumstances will not be affected.
- g. No provision of the Agreement may be modified, waived or discharged unless such waiver, modification or discharge is agreed to in writing and signed by the Employee and the Company.
- h. No waiver by either party hereto at any time of any breach by the other party or compliance with any condition or provision of the Agreement to be performed by such other party shall be construed as a waiver of similar or dissimilar provisions or conditions at the same or at any prior or subsequent time.

- i. Unless otherwise noted, references to “Sections” are to sections in the Agreement. The captions used in the Agreement are for convenient reference only and are not to be used for the purpose of interpreting any provision of the Agreement.
- j. The Employee acknowledges that it is a condition of their employment that they sign and return a copy of the Personal Data Protection Statement attached to this Agreement. By signing and returning a copy of the Personal Data Protection Statement, the Employee consents to the collection, use, disclosure, transfer and general processing of their personal data as stated in the Personal Data Protection Statement and undertakes to help the Company observe the requirements of the Information Technology Act 2008 and its rules by keeping personal data relating to the Company's employees and customers secure and not misusing such data, or disclosing or using such data without due authorization.
- k. This Agreement shall be specifically enforceable at the instance of any party. The parties agree that a non-defaulting party will suffer immediate, material, immeasurable, continuing, and irreparable damage and harm in the event of any material breach of this Agreement and that damages may not be an adequate remedy, and the non-defaulting party will be entitled to an injunction, restraining order, suit for specific performance, or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain the other party from committing any violation or enforce the performance of the covenants, representations, and obligations contained in this Agreement.

Any notice required to be given hereunder shall, in the case of notice to the Company, be deemed duly served if left at or sent by registered post to the registered office of the Company at Unit no. A1, A2, A3 & B1, 4th Floor, Building no. 1, Ashar IT Park, 16Z Road, Wagle Industrial Estate, Thane (West), Thane - 400 604., India with a copy to the DGS Legal, at 6th Floor, B-Wing, Prism Tower, Malad Link Road, Goregaon (West), Mumbai – 400062, India or emailed to **dgslegal@dentsu.com**; (ii) in the case of notice to the Employee, if handed to the Employee personally, or sent by registered post to the Employee's last known address email to sharma.mayur92@gmail.com. Any such notice shall be deemed to be served at the time when the same is handed to or left at the address of the Party to be served, or if served by post, forty eight (48) hours after posting or if sent by e-mail, at the time of confirmation of transmission recorded on the sender's computer.



Mayur Sharma
PAN No: CWZPS4804F
The Employee

Date: 03/09/2025

Annexure – I

Compensation	
Table A: Break-up of Remuneration	
Annexure I: Salary Structure (in ₹)	
Salary Heads	Per Annum
Fixed Components (FC)	
Basic Pay	₹1,100,004.00
HRA	₹550,008.00
Other Allowance	₹393,000.00
Mobile Allowance	₹12,000.00
Car Scheme (Driver's Salary)	₹10,800.00
Car Scheme (Fuel & Maintenance Allowance)	₹21,600.00
Provident Fund (Employer Contribution) - Amount	₹21,600.00
Professional Development Allowance	₹36,000.00
National Pension Scheme	₹54,984.00
Fixed Remuneration (Annual)	₹2,199,996.00
Fixed Remuneration (Monthly)	₹183,333.00

Mobile / Internet Reimbursement	As per Company policy, subject to submission of receipts
Group Mediciam Insurance	INR 500,000 coverage for Self, Spouse and 2 Dependent Children upto age 25 years with an option for self-funded Top Up and coverage for Parents and Parents-in-Law.
Group Term Life Insurance	Sum Assured is 2 times annual Fixed Compensation with a minimum of INR 20,00,000
Group Personal Accident Insurance	Sum Assured is 2 times annual Fixed Compensation with a minimum of INR 20,00,000
Gratuity	Payable as per the payment of Gratuity Act
Statutory Bonus	Payable as per the Payment of Bonus Act
Labor Welfare Fund	Deductible as per State Government regulations
ESIC	If monthly gross salary is less than or equal to ₹ 21,000/- then 0.75% of the monthly gross salary will be deducted per month towards Employee ESIC contribution

ANNEXURE II

PERSONAL DATA PROTECTION STATEMENT

Your privacy is important to the Company.

Throughout the course of your employment with the Company, the Company needs to collect, use, disclose, and/or transfer outside of India, (individually and/or collectively "**Process**"), including through any authorised third party acting on its behalf, Personal Data from you and about you. "**Personal Data**" shall include all the

- (i) 'Sensitive Personal Data or Information' as defined in the Information Technology Act, 2008 along with the Reasonable Security Practices and Procedures and Sensitive Personal Data or Information Rules;
- (ii) "Personal Data" as defined under the Digital Personal Data Protection Act, 2023 (DPDP Act) as enforced; and
- (iii) the following data or information to the extent not already covered:
 - Recruitment, engagement or training records;
 - Information about your medical condition;
 - Information regarding termination of past employment;
 - Terms and conditions of employment offered by the Company;
 - Photographs for identification purpose, images and emergency contact details;
 - Performance, conduct and disciplinary records;
 - Remuneration details, bonus and share plan information;
 - Membership of professional associations or trade unions;
 - Leave records (including annual leave, sick leave and maternity leave);
 - Taxation, banking and mandatory provident fund details;
 - Biometric information;
 - Aadhaar Card and PAN card details'
 - Financial Information such as bank account number or debit card or credit card or other payment instrument details;
 - Health and safety information;
 - Ethnic and Religious background information as applicable; and/or
 - Any other information that you provide to the Company.

The purposes for which the Company needs to Process your Personal Data is for:

I. Recruitment and onboarding:

- i) Evaluating applications and credentials
- ii) Conducting background verification
- iii) Setting up employee records

II. Employment Administration:

- i) Creating and maintaining HR records
- ii) Issuing ID cards, email addresses, and system access
- iii) Managing work schedules and attendance

III. Legal and Regulatory Compliance

- i) Maintaining statutory registers and compliance records
- ii) Submitting mandatory filings with labour, tax, or other authorities
- iii) Responding to legal or regulatory audits/inquiries

IV. Performance and Conduct Management

- i) Performance appraisals and talent assessments
- ii) Disciplinary investigations and actions
- iii) Employee grievance redressal

V. Training and Development

- i) Planning training programs
- ii) Recording skill and competency developments
- iii) Tracking certifications and learning progress

VI. Health, safety and wellness

- i) Ensuring workplace safety
- ii) Organizing health check-ups and vaccination drives
- iii) Managing disability or health- related accommodations

VII. IT and Security Monitoring

- i) Providing and securing access to IT systems
- ii) Monitoring access to premises and networks (eg., CCTV, VPN, logs)
- iii) Preventing data breaches and unauthorised activity

VIII. Internal Communication and Collaboration

- i) Facilitating internal communications
- ii) Publishing company updates or employee recognitions
- iii) Business Operations and Continuity
- iv) Enabling cross-border team collaboration
- v) Supporting audits, internal controls, and corporate restructuring
- vi) Transferring data to third-party processor or affiliates for operational efficiency.
- vii) Disaster Recovery and Data Backup
- viii) Storing data on backup or offsite servers (including outside the country)
- ix) Ensuring data availability in case of system failure or disaster
- x) Exit and post-employment
- xi) Processing full and final settlement
- xii) Providing employment verifications or references
- xiii) Retaining records for statutory or legitimate purposes post-exit.

The Company may from time to time transfer your Personal Data to the following classes of persons, including those, who may be based in a jurisdiction outside of India as well

- its Related Corporation;
- the Company's insurers and banks;
- secure servers for disaster recovery and business continuity
- medical practitioners appointed by the Company;
- administrator of the Company's mandatory provident fund scheme;
- outside parties involved in a merger, acquisition or due diligence exercise;
- third party organizations that provide us with technology solutions and/or support such organizations that have been engaged to host, support and otherwise maintain the human resource information system for the benefit of the employees including for payroll processing, benefits delivery, any emergency security;

- third party for the purpose of investigation in breach of any statutory law or company policy.
- companies the Company engages or subcontracts to perform the functions listed above on the Company's behalf under the terms of binding agreement; and
- anyone you authorise

If you do not provide complete and accurate Personal Data to the Company as and when it is required, there may be potentially serious consequences for you and, depending on the circumstances, your future employment relationship with the Company.

The withdrawal or refusal to provide such consent may affect the Company's ability to carry out specific employment -related processing activities, which may, in turn, impact the employees' access to certain benefits, services, assignments or continued engagement, to the extent permitted by law

It is the Company's policy to retain certain Personal Data of employees for a reasonable period after they cease to be employed. This data may be required for any residual employment-related activities, including for example, provision of references, processing of applications for re-employment, matters relating to retirement benefits and allowing the Company to fulfil any of the Company's contractual or statutory obligations.

To the extent applicable law allows, you may request access to, and correction of, your personal data in relation to your employment. For any further information, please contact 'HR Head' or 'Data Protection officer/Grievance officer India'.

Please indicate your understanding and acceptance of the above by signing and returning the acknowledgement form below.

Acknowledgement

By signing this Personal Data Protection Statement, I confirm that I have read and fully understand the above contents and acknowledge that purpose and scope of the collection, use, storage, and sharing of my Personal Data, including sensitive personal data or information, have been clearly explained to me by the Company and I understand that my Personal Data will be handled in compliance with applicable laws and company policies. I hereby accord my consent for processing and sharing of my Personal Data as outlined above.



Mayur Sharma

[PAN No: CWZPS4804F]

The Employee

Date: 03/09/2025

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Final Audit Report

2025-09-04

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